

Moupiya Choudhury vs Usharani Das on 4 June, 2024

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Bench: Parthivjyoti Saikia

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GAHC010065912023

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : CRP(IO)/85/2023

MOUPIYA CHOUDHURY
W/O- LATE PRANAB DUTTA, R/O- BARSADERI (BADANKUCHI), MOUZA-
UTTAR BAJALI, P.O. BHOTANTA SADERI, P.S. PATACHARKUCHI, DIST.-
BARPETA (ASSAM), PIN- 781325

VERSUS

USHARANI DAS
W/O- LATE PRANAB DUTTA, R/O- BARSADERI (BADANKUCHI), MOUZA-
UTTAR BAJALI, P.O. BHOTANTA SADERI, P.S. PATACHARKUCHI, DIST.-
BARPETA (ASSAM), PIN- 781325

Advocate for the Petitioner : MR. M J BARUAH

Advocate for the Respondent : MR. K R PATGIRI

:: BEFORE ::
HON'BLE MR. JUSTICE PARTHIVJYOTI SAIKIA

O R D E R

04.06.2024 Heard Mr. M.J. Baruah, learned counsel appearing for the petitioner. Also heard Mr. S. Bora, learned counsel representing the sole respondent.

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2. This is an application under Article 227 of the Constitution of India challenging the order dated 08.02.2023 passed by the learned Additional District Judge, Bajali in Misc S.C. Case No.11/2018.
3. Smti. Usharani Das is the wife of late Pranab Dutta. They have a 16 years old daughter named, Madhusmita Dutta.
4. During the lifetime of the first wife, Pranab Dutta had married the present petitioner.
5. It may be stated that on an earlier occasion, the respondent Usharani Dutta had filed a case under Section 125 CrPC against Pranab Dutta seeking monthly maintenance and the court allowed her prayer by directing Pranab Dutta to pay certain amount of money to Usharani Dutta every month as maintenance. Pranab Dutta was reportedly paying the monthly maintenance to Usharani Dutta.
6. In the meantime, Pranab Dutta expired on 02.09.2017. Therefore, Usharani Dutta filed an application before the court below seeking a succession certificate in respect of the properties left behind by late Pranab Dutta.
7. The present petitioner being the second wife contested the said application.
8. Both sides examined some witnesses in order to prove their cases.
9. Thereafter, the present petitioner filed an application before the court below seeking leave to examine some witnesses to prove some documents. That application was rejected by the learned trial court.
10. The learned court below has held that according to Section 5 of the Hindu Marriage Act, 1955, the second marriage is void ab initio and the second wife is not entitled to inherit the properties of the deceased husband. For this reason, the learned trial court held that the petition filed by the present petitioner need not be considered and dismissed the said petition.
11. Aggrieved by the aforesaid order, the petitioner has approached this Court by filing the present revision petition.
12. I have considered the submissions made by the learned counsel of both sides.

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13. In this case, it is an admitted position that the present petitioner is the second wife of late Pranab Dutta. He married her while the first Usharani Dutta was alive. Under this circumstance, I find that the learned trial court has correctly rejected the prayer of the second wife. There is nothing wrong in the impugned order.
14. The present revision petition is found to be devoid of merit and stands dismissed accordingly.

Interim order passed earlier stands vacated.

JUDGE Comparing Assistant